

AFEMEA statement on Article 5 of the PPWR

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Article 5 of Regulation (EU) 2025/40 on packaging and packaging waste, referred to as the PPWR, deals with the minimisation of substances of concern in packaging. The precise requirements on what needs to be done and what needs to be communicated down the supply chain, are not so clearly spelled out in the legal text. This has implications related to Article 12 (labelling of packaging), Article 15 (obligations of packaging manufacturers), Article 16 (information obligations of suppliers of packaging materials to the packaging manufacturer) and Annex VII (technical documentation for conformity assessment).

To improve our understanding of the requirements of Art. 5 of the PPWR, we have over the past months been in repeated contact with the European Commission and with our trade association Flexible Packaging Europe, who themselves have obtained external legal advice, and have also participated in the European Commission's Expert Group on Waste and other dedicated meetings.

On this basis, the following sets out our position on the requirements of Article 5 of the PPWR and their practical implementation:

1. According to the provisions of the PPWR, Amcor is a supplier of packaging materials. The business operator who carries out the final processing steps (such as cutting, sealing, filling) and/or who is having the packaging manufactured under his trademark or design, is defined as the manufacturer of packaging. Normally this is the brand owner that is placing the packed product on the market.
2. Article 5(1) of the PPWR requires that the presence and concentration of substances of concern (SoCs) as constituents of the packaging material or of any of the packaging components is minimised. This is not a stand-alone requirement, but becomes implemented by the further provisions in Article 5, more specifically:
 - a. As outlined in Art. 5(2), ECHA is preparing a report for the Commission on the presence of SoCs in packaging. On this basis, the Commission will next decide
 - i. which SoCs pose a risk to human health or the environment to such an extent that they should become subject to a Restriction under the REACH Regulation. The substances affected and their prioritisation for going into the Restrictions procedure, are not yet known.
 - ii. which SoCs negatively affect the re-use or recycling of packaging and should therefore be addressed in the design for recycling criteria that are to be published at a later date.
 - b. Art. 5(4) sets a limit of 100 ppm (for all types of packaging) on the sum concentration of the heavy metals lead, cadmium, mercury and hexavalent chromium. This maintains the current identical requirement of the Packaging and Packaging Waste Directive 94/62/EC.
 - c. Art. 5(5) prohibits the placing on the market of food-contact packaging containing PFAS in a concentration above specific limit values:

- i. 25 ppb individually for all non-polymeric PFAS, as measured by targeted analysis
 - ii. 250 ppb in total for the sum concentration of all non-polymeric PFAS, as measured by targeted analysis
 - iii. 50 ppm in total for the sum concentration of all PFAS including polymers, as measured by total fluorine analysis and, if appropriate, subtraction of the contribution of inorganic fluorine compounds.
3. On the requirements of Article 5 points (2), (4) and (5), AFEMEA is adequately meeting its legal obligations related to documentation of conformity by the following points:
 - a. we are responsible only for the conformity of its products as supplied, and not for the final packaging as placed on the market by the manufacturer.
 - b. we use supply chain information and, as appropriate, testing of relevant samples of our raw materials or products, to establish conformity. This information becomes part of our supporting documentation that we will provide to enforcement authorities on their request.
 - c. we have no legal obligation to provide test reports to customers; instead we provide a statement of compliance to these requirements.
4. On the minimisation of SoCs according to Art. 5(2), we can only start assessing the conformity when the detailed requirements are known. We will issue the relevant confirmations when these detailed provisions are entering into force.
5. On the PFAS provisions in Art. 5(5), it should be noted that targeted test methods for measuring the concentration of thousands of PFAS molecules, don't exist yet. Therefore we cannot currently confirm compliance with the 25 ppb and 250 ppb PFAS limits. The European Commission has recognised this in guidance stating that only the 50 ppm limit needs to be complied with, and the other two limits don't need to be tested. This may be revised when analytical capabilities improve.
6. The labelling of packaging with the name and concentration of substances of concern cannot be implemented before detailed instructions are published on the selection of SoCs to be included on the label and their reporting threshold. More information will become available in coming years.

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